Legal Boundaries for the Commercial Exploitation of Real-World Locations, Brands, and Personal Likenesses in Interactive Digital Media under Swiss Law

1. The Fallacy of the "Fair Use" Doctrine in the Swiss Legal Paradigm

The development of a commercial interactive visual novel that seeks to leverage hyper-realistic, AI-generated, or heavily edited photographs of real Zurich locations, authentic Swiss corporate brands, and the specific likenesses or biographies of real individuals precipitates a highly volatile matrix of legal liabilities. A pervasive, fundamental, and potentially catastrophic error committed by digital media developers is the naive importation of the Anglo-American doctrine of "Fair Use" (codified under 17 U.S.C. § 107 in the United States) into the Swiss jurisdiction. This conceptual framework must be categorically and brutally discarded. The Swiss legal architecture operates with uncompromising rigidity; it does not recognize, tolerate, or accommodate an open-ended "Fair Use" defense. The assumption that artistic expression provides a universal shield against infringement claims is a legal fiction that will invariably culminate in devastating financial and injunctive consequences for a commercial publisher operating within or targeting the Swiss market.

Swiss intellectual property and personality rights are governed by an exhaustive, rigidly defined catalog of statutory exceptions, known as *Schranken* (limitations), primarily delineated within the Federal Act on Copyright and Related Rights (URG), the Federal Act on the Protection of Trade Marks and Indications of Source (MSchG), the Federal Act against Unfair Competition (UWG), and the Swiss Civil Code (ZGB).[1] If a specific commercial utilization of a protected work, trademark, or personal identity does not perfectly align with one of these narrowly tailored statutory exceptions, the usage constitutes a direct infringement. Such infractions expose the commercial entity to immediate injunctive relief, claims for substantial damages, moral compensation, and the complete disgorgement of all profits generated by the offending product, as mandated by Article 28a of the ZGB and Article 61 of the URG.[1]

For a commercial video game designed explicitly for profit, the legal boundaries are absolute and unforgiving. While freedom of artistic expression is a constitutionally guaranteed right under Article 21 of the Federal Constitution of the Swiss Confederation (BV), the Swiss Federal Supreme Court (Bundesgericht) has repeatedly and explicitly decreed that this constitutional

guarantee does not grant artists a carte blanche to trample upon the property, commercial, or personality rights of others.[7] The judicial balancing act between an artist's freedom of expression and a victim's right to protection overwhelmingly favors the victim when the infringement is executed for commercial gain and lacks a pressing public interest justification.[7]

To contextualize the strict liability environment of the Swiss jurisdiction, the following table delineates the critical, irreconcilable distinctions between the common-law expectations frequently held by international developers and the uncompromising reality of Swiss jurisprudence.

Legal Concept	**Anglo-American Framework (US)**	**Swiss Legal Framework**
General Exception	"Fair Use" doctrine; a flexible, four-factor balancing test applied to any unauthorized use based on purpose, nature, amount, and market effect.	No open-ended exception exists. The system relies strictly on an exhaustive, closed list of statutory limitations (*Schranken*) enumerated within the URG.[1]
Parody Defense	Broadly protected under Fair Use, especially if the new work is highly transformative and constitutes a commentary on the original.	Parody is permitted under Art. 11 Para. 3 URG, but it is strictly interpreted. It must exhibit a critical purpose and humorous effect, and must not violate unfair competition laws (UWG) when applied to trademarks.[2]
Public Spaces	Freedom of Panorama is generally limited to architectural works, frequently excluding public sculptures or the interiors of publicly accessible spaces.	Freedom of Panorama (Art. 27 URG) covers 2D reproductions of both architecture and art permanently located on generally accessible ground. Commercial use is explicitly permitted by statute.[11]

Personality Rights	Right of Publicity; often ceases or heavily diminishes upon death; heavily weighed against First Amendment rights in entertainment media.	Absolute, almost insurmountable protection under Art. 28 ZGB. Protects fiercely against recognizable depiction in fictional works. The threshold for artistic justification is exceptionally high.[7]
Commercial Exploitation	Commercial nature weighs against Fair Use but can be overcome if the work is highly transformative.	Commercial exploitation of another's reputation (*Rufausbeutung*) is directly prohibited under Art. 2 and Art. 3 lit. e UWG, regardless of transformative artistic intent.[15]

The subsequent analysis will exhaustively dissect the exact red lines that a commercial entity absolutely cannot cross when integrating Zurich locations, Swiss corporate brands, and the likenesses of real individuals into a digital product destined for the commercial market.

2. The Exploitation of Zurich Locations: Freedom of Panorama versus Absolute Property Rights

The integration of hyper-realistic, AI-generated, or heavily edited photographs of real Zurich locations—such as the *Hauptbahnhof* (Main Station), specific local cafes, and municipal libraries—requires a surgically precise navigation of the Swiss Freedom of Panorama (*Panoramafreiheit*) and the absolute property rights (*Hausrecht*) maintained by landowners. The developer's assumption that any location visible to the public can be digitized and monetized in a video game is legally hazardous.

2.1. The Scope and Limits of Article 27 URG (*Panoramafreiheit*)

Article 27 of the URG provides the foundational statutory basis for the Freedom of Panorama within the Swiss Confederation. The legislation unequivocally states that a work permanently located on or at "generally accessible ground" (*allgemein zugänglichem Grund*) may be depicted, and crucial for commercial developers, this depiction may be offered, sold, broadcast, or otherwise distributed.[13] Unlike several restrictive European jurisdictions that limit the Freedom of Panorama strictly to non-commercial endeavors, Swiss law explicitly permits the commercial utilization of such depictions without necessitating any remuneration or licensing agreements with the original architect, sculptor, or copyright holder.[11]

For the development of a commercial visual novel, this statutory exception provides a robust

shield for specific assets. The external facades of Zurich's buildings, public streets, municipal squares, and permanent public sculptures can be photographed, digitized, subjected to AI modification, and subsequently sold within the commercial framework of the game engine. The purely commercial nature of the video game does not invalidate the exception provided by Article 27 URG.[12] However, the statute mandates strict compliance with two conditions: the depiction must be two-dimensional (a condition inherently satisfied by the graphical assets of a visual novel), and the depiction cannot be utilized for the exact same purpose as the original physical work.[17]

2.2. The Interior Space Controversy and the Superiority of *Hausrecht*

The legal perimeter shifts from permissible to highly perilous the moment the game environment transitions from the exterior public streets of Zurich into the interiors of specific locations, such as the *Hauptbahnhof*, a local municipal library, or a privately owned cafe.

The statutory text of Art. 27 URG requires the target work to be located on "generally accessible ground." A fierce, unresolved doctrinal debate exists within Swiss legal scholarship regarding whether this phrase encompasses the interiors of publicly accessible buildings.[17] Progressive scholars argue that "factual accessibility" is the sole determining criterion, which would theoretically imply that the interiors of train stations, churches, and shopping centers should benefit from the Freedom of Panorama.[17] Proponents of this expansive view highlight that the 1992 revision of the URG deliberately excised the restrictive wording of "public paths or squares" found in the previous 1922 iteration of the law, thereby theoretically opening the legislative door for the depiction of interiors.[17]

However, relying on progressive academic theories is a reckless strategy for a commercial enterprise. The prevailing, risk-averse legal interpretation—and the definitive red line for commercial exploitation—dictates that the Freedom of Panorama generally does not protect the unauthorized commercial depiction of interior spaces.[20] Interior spaces, regardless of how freely the public may wander through them, are almost universally subject to the *Hausrecht* (property or "house" rights) of the owner, a concept fiercely protected under Article 926 of the Swiss Civil Code (ZGB).[17]

2.2.1. The Absolute Red Line of *Hausrecht* at the Zurich Hauptbahnhof

Even if a theoretical copyright argument could be sustained under Art. 27 URG that a train station interior qualifies as "generally accessible," the property owner retains the absolute, unassailable right to dictate the terms, conditions, and prohibitions regarding commercial exploitation within their premises. Property rights trump the Freedom of Panorama.

The Swiss Federal Railways (SBB), a heavily corporatized entity that owns and operates the Zurich Hauptbahnhof, enforces an exceptionally strict, zero-tolerance regime regarding commercial photography, filming, and digitization. Official SBB regulations explicitly and unambiguously state that any film or photo shoots conducted for commercial purposes on SBB premises—which unequivocally includes the capturing of reference material to construct a

commercial video game environment—require prior evaluation and formal, written authorization.[22]

The SBB does not grant these permits lightly. The corporation demands comprehensive project details, including the submission of scripts, the exact intended use of the imagery, production budgets, and the size of the crew, before even considering a permit application.[23] The SBB explicitly states that commercial endeavors must not disturb passengers or disrupt operations, and unauthorized commercial exploitation of their infrastructure will result in immediate legal retaliation, including claims for damages and trespass.[25] Attempting to bypass this by sneaking photographs to feed into an AI image generator for the visual novel is a direct violation of the SBB's *Hausrecht*.

Similarly, capturing the interiors of local, privately owned cafes or municipal libraries without the explicit, written consent of the business owner or the municipal authority violates both their *Hausrecht* and potentially the copyrights of the interior architects or artists whose protected works are displayed inside.[20] A cafe owner has the absolute right to demand a licensing fee for the commercial reproduction of their business's unique interior design.

2.3. AI-Generation and the Creation of Derivative Works

A technological workaround frequently proposed by developers is the use of generative Artificial Intelligence (AI) or heavy image editing to obfuscate the original photograph, believing this severs the legal tie to the location. This demonstrates a profound misunderstanding of Swiss copyright mechanics regarding derivative works (*Bearbeitungen*).

If the developer utilizes AI to create hyper-realistic backgrounds based on specific, copyrighted interior locations or protected architectural features, this constitutes an unauthorized reproduction or derivative work under Articles 10 and 11 of the URG.[27] The Swiss Federal Institute of Intellectual Property (IPI) has provided clear guidance on this matter: if copyright-protected works (such as distinctive interior architecture, proprietary murals, or bespoke furniture layouts) remain recognizable within the AI-generated material (the output), the output is legally classified as an adaptation of the original work.[28] Consequently, the user requires corresponding licenses from the original rights holders to legally utilize this output in a commercial product.[28] Processing an illegal interior photograph through a neural network does not cleanse the infringement; it merely automates the creation of a derivative infringement.

3. Brand Appropriation, The Illusion of Parody, and the Hammer of Unfair Competition

The ambition to inject recognizable Swiss brands—most notably retail giants like Migros or the institutional monolith of the SBB—into a commercial visual novel to achieve "hyper-realism" introduces catastrophic legal exposure. This exposure is governed by the Federal Act on the Protection of Trade Marks and Indications of Source (MSchG) and, far more dangerously, the Federal Act against Unfair Competition (UWG). The developer's proposition to circumvent

liability by slightly altering brand names (e.g., deploying "Magros" instead of "Migros" while maintaining the brand's visual identity) represents a fundamental failure to comprehend the boundaries of trademark infringement, the strict limits of the Swiss parody exception, and the absolute prohibition against parasitic reputation exploitation.

3.1. Trademark Protection (MSchG) and the Rigidity of Swiss Brand Enforcement

Swiss corporate trademarks, such as the distinctive orange typography of the Migros logo or the iconic, minimalist design of the SBB railway station clock, are among the most fiercely protected commercial assets in the jurisdiction. The SBB, as a prime example, has demonstrated a willingness to enforce its trademark and design rights on a global scale. In a highly publicized dispute, the SBB successfully compelled the world's largest technology company, Apple Inc., to enter into a multi-million-franc licensing agreement simply for the unauthorized use of the SBB station clock design within the iOS operating system's clock application.[29] This precedent illustrates the aggressive, unyielding litigation posture assumed by major Swiss corporations regarding their intellectual property; they do not view unauthorized digital reproduction as flattering "artistic expression," but as theft.

Under Article 13 of the MSchG, a trademark owner possesses the exclusive right to use the mark to identify goods or services and to legally prohibit third parties from utilizing a sign that is identical or confusingly similar. Developers often erroneously argue that because a video game is an entertainment medium—and therefore not in direct market competition with a supermarket's retail groceries or a railway's transport services—trademark law does not apply. This is false. The use of a highly similar sign (such as "Magros") in a commercial product can still trigger trademark liability if it creates a false association, suggests an unendorsed sponsorship, or dilutes the distinctiveness of a famous mark.

Furthermore, the developer must recognize that a single altered vowel ("Magros") does not magically transform trademark infringement into a legally protected "parody." Under Swiss copyright law, specifically Article 11 Paragraph 3 of the URG, existing works may indeed be parodied.[2] However, the Swiss Federal Supreme Court applies a highly restrictive test: a parody must possess a clearly recognizable humorous effect and, crucially, it must pursue a *critical purpose* directed at the original work or the entity it represents.[2] If the altered brand name "Magros" is inserted into the game merely as atmospheric "window dressing" to make the digital Zurich feel realistically Swiss—without offering a specific, substantive critical commentary on the Migros corporation itself—the parody defense entirely collapses.[10] Using a brand purely for world-building is not parody; it is appropriation.

3.2. Unfair Competition (UWG): The Lethal Threat of *Rufausbeutung*

Even if a highly technical defense against trademark infringement under the MSchG were to succeed based on a lack of direct product-class competition, the developer faces a much broader, more flexible, and vastly more dangerous legal weapon: the Federal Act against Unfair Competition (UWG).[4] The UWG is designed precisely to catch parasitic commercial behavior

that slips through the cracks of formal trademark law.

Article 2 of the UWG establishes a sweeping general clause that categorically prohibits any deceptive or bad-faith behavior that offends the principle of good faith and influences the relationship between competitors or suppliers and customers.[4] More specifically, Article 3 lit. e of the UWG explicitly outlaws the unreasonable exploitation of another entity's reputation (*Rufausbeutung* or *Rufausnutzung*).[15]

The Swiss Federal Supreme Court (BGE) has established a massive body of jurisprudence regarding the imitation of brand aesthetics, trade dress, and corporate identity (*Ausstattungsschutz*). In the cutthroat history of Swiss retail, "me-too" products and provocative brand imitations have been litigated relentlessly. The Federal Court has previously ruled on the visual similarities between cosmetic brands (e.g., BGE 116 II 365, the dispute between *Nivea* and the Migros imitation *Jana*) and retail cereal bars (the dispute between Migros's *Farmer* bars and Coop's *Country* bars).[10]

These rulings established the principle of the "overall impression" (*Gesamteindruck*). If a developer creates an in-game supermarket named "Magros" that utilizes the exact same distinctive orange color palette, the exact same typography, similar store layout, and identical corporate trade dress as Migros, the developer is engaging in a textbook case of parasitic value transfer.[31] The developer is deliberately leveraging the decades of massive financial investment, goodwill, and psychological recognition built by Migros to enhance the commercial appeal, realism, and ultimate profitability of their own video game.

Under the UWG, courts do not require players to be literally confused into believing that Migros developed the visual novel. The mere act of unauthorized, commercial free-riding on the brand's immense advertising value constitutes actionable unfair competition.[15] It is deemed parasitic (*schmarotzerisch*).

Furthermore, if the visual novel features adult themes, violence, mature language, or controversial narratives, the brand owner possesses the immediate right to seek a devastating injunction under Article 3 lit. a of the UWG, which prohibits the denigration, disparagement, or unnecessary belittlement of a brand.[15] A wholesome Swiss supermarket brand will not tolerate its trade dress being associated with a video game featuring criminal activities or adult themes.

3.3. Strategic Red Lines for Brand Implementation

The following dictates outline the exact legal boundaries for handling brands within the proposed video game:

Commercial Action	Legal Status under Swiss Law (MSchG / UWG)	Consequence
Using Exact Brands	**Prohibited (Red Line).**	Immediate

(Migros, SBB)	Constitutes direct trademark infringement and unfair competition unless explicitly licensed by the corporation.[4]	cease-and-desist, distribution injunction, and claims for damages and licensing fees.
Using Slightly Altered Names ("Magros") with Identical Trade Dress (Orange Color, Font)	**Prohibited (Red Line).** Violates the "overall impression" (*Gesamteindruck*) doctrine under UWG Art. 2 and Art. 3 lit. e (*Rufausbeutung*). It is parasitic free-riding, not parody.[15]	Injunctions, mandatory recall of the game, and disgorgement of all profits derived from the game (Art. 9 UWG).
Using Generic Fictional Brands (e.g., "Zurich Fresh Market") with Original Trade Dress	**Permitted.** Utilizes standard, unprotectable elements of retail without mirroring the specific, proprietary color palettes or typography of real Swiss corporations.[33]	Legally sound. The developer relies on their own creative labor rather than appropriating the goodwill of others.
Satirical Parody of a Brand	**Permitted (with extreme caution).** Must possess a clear humorous effect AND offer a direct, critical commentary on the brand itself, not merely use the brand as a prop.[2]	Highly risky. Requires careful legal review to ensure it does not cross into disparagement (Art. 3 lit. a UWG).

4. Personality Rights (ZGB Art. 28): The Lethal Fictionalization of Real Persons

The most perilous and legally indefensible element of the developer's proposed project involves the intention to base in-game characters heavily on real, local Zurich individuals—specifically citing examples such as a "specific local beggar" or a "local millionaire"—maintaining their exact real-world profession and geographical location while merely altering their names.

This scenario constitutes a premeditated, direct assault on the absolute core of Swiss personality rights (*Persönlichkeitsschutz*), which are governed by Article 28 of the Swiss Civil Code (ZGB). Under Swiss civil law, the protection of an individual's personality, honor, privacy, and reputation is paramount and stringently, ruthlessly enforced against media, literature, and

artistic works.[38] The developer's belief that altering a name provides a legal shield reveals a catastrophic misunderstanding of how Swiss courts evaluate identity.

4.1. The Principle of Recognition (*Erkennbarkeit*) and the "Average Reader"

Article 28 Paragraph 1 of the ZGB dictates that whoever suffers an unlawful infringement of their personality has the absolute right to petition the court for protection against *any* person participating in the infringement.[6]

A personality right violation within a fictionalized work (such as a novel, film, or visual novel video game) hinges entirely on the judicial concept of **recognition (*Erkennbarkeit*)**. The legal threshold applied by the courts is not whether the entire Swiss population knows the person, nor whether the person is globally famous. The threshold is whether the individual is recognizable to their specific social circle, their family, their professional colleagues, or the local community in which they operate.[7]

The Swiss Federal Supreme Court has repeatedly, consistently, and forcefully ruled that merely changing a person's name in a piece of media is entirely insufficient as a legal defense if the surrounding contextual clues—such as their specific profession, their precise location (e.g., the exact street corner a specific beggar frequents in Zurich), and their biographical or physical details—allow the "average reader" (*Durchschnittsleser*) or "average player" to deduce their true, real-world identity.[7]

4.2. Landmark Precedents: BGE 120 II 225 and BGE 135 III 145

The developer's exact scenario has been explicitly litigated and definitively criminalized by the Swiss Federal Supreme Court in two landmark, binding cases regarding *Romanfiguren* (fictional characters in novels or media based on real people). These cases serve as the unyielding parameters for assessing liability.

4.2.1. The "Soziale Hohlfahrt" Civil Servant Case (BGE 120 II 225)

In this seminal 1994 case, an author published a book featuring a highly derogatory, fictionalized depiction of a local civil servant, calling the character a "stinking Wirsig" and accusing him of extorting signatures from nursing home residents.[42] The author attempted to defend herself by arguing that the work was clearly fiction, that names were changed, and that the text was protected by the constitutional guarantee of artistic freedom (Art. 21 BV).

The Federal Supreme Court vehemently rejected this defense, establishing a precedent that stands today. The Court held that if an author or developer chooses to write a fictional story based on real circumstances or real people, they bear a strict legal obligation to apply the necessary care to **exclude any and all references that could link the character to actual living persons** (a legal process known as *Verfremdung* or alienation).[7] Because the fictional character's geographical location, profession, and specific actions were so detailed that the average local reader could easily identify the real civil servant serving as the template, the

author was found guilty of a severe personality right violation. The Court ruled decisively that the artist's interest in artistic expression must absolutely yield to the victim's interest in their personality rights. The author was subjected to a total distribution ban (injunction) unless the offending, recognizable passages were entirely excised.[7]

4.2.2. The "Rosmarie V." Mountain Farmer Case (BGE 135 III 145)

In a subsequent 2009 case, an author wrote a novel about a young woman moving to a remote Swiss mountain valley. The novel featured a character named "Basti," depicted as a violent, predatory man who engaged in extortion and sexual assault.[14] The real-life brother-in-law of the author's wife recognized himself in the character due to matching geographical locations, familial relationships, and contextual details, despite the name change and the fact that the narrative of extreme violence was purely fictionalized drama.[14]

The Federal Supreme Court reaffirmed its strict stance, dictating that an infringement under Art. 28 ZGB occurs even if the offensive acts depicted in the media are completely fictional, provided that the reader or consumer is led to associate those horrific fictional acts with the real, identifiable person used as the visual or narrative template.[8] The Court stated that this type of violation is functionally equivalent to writing and distributing a defamatory letter about the person. The subjective recognition by the person and their immediate local environment is entirely sufficient to establish crushing civil liability.[8]

4.3. The Devastating Application to the Developer's Game

Applying these strict, binding precedents to the developer's commercial visual novel yields an unequivocal, brutal conclusion. If the developer targets a "specific local beggar" or a "specific millionaire" in Zurich, changes their name to a fictional alias, but retains their exact physical appearance (via heavily edited or AI-generated photos), their exact real-world geographical location in Zurich, and their exact real-world profession, the developer is actively engineering a recognizable, digital avatar of a living Swiss citizen.[41] This is legally classified as an intentional failure to execute *Verfremdung*.

If the visual novel then places this recognizable, non-consenting avatar into fictional, dramatic, or potentially negative scenarios (which is inherently required to drive the narrative tension of a video game), the developer commits a massive, undeniable violation of Art. 28 ZGB. The real individual—whether a billionaire with infinite legal resources or a beggar provided with pro-bono legal aid—can immediately petition the Swiss courts for a suite of catastrophic remedies:

1. **Immediate Injunction (Unterlassungsklage):** A court order to halt the distribution, digital download, and sale of the game across all platforms globally (Art. 28a Abs. 1 Ziff. 1 ZGB).[6]
2. **Declaratory Judgment (Feststellungsklage):** A formal, public declaration of the infringement.[45]
3. **Damages and Moral Compensation (Schadenersatz und Genugtuung):** Financial penalties for psychological distress and reputational harm.[6]

4. **Disgorgement of Profits (Gewinnherausgabe):** The total forfeiture of all revenue generated by the game, handed over directly to the victim (Art. 28a Abs. 3 ZGB).[6]

4.4. The Right to One's Own Image and the Failure of the "Public Figure" Exception

The developer's intent to use AI-generated or heavily edited photographs of these real people introduces an additional, fatal layer of liability under the Right to One's Own Image (*Recht am eigenen Bild*), which constitutes a highly specific, aggressively protected subset of the broader personality rights under Art. 28 ZGB.[49]

Every individual in Switzerland possesses the absolute, self-determining right to decide whether, when, and exactly how their physical image is recorded, processed, manipulated, and published.[49] The developer's reliance on Artificial Intelligence to mutate or generate a likeness does not circumvent this fundamental human right. If the resulting AI-generated avatar bears a recognizable physical resemblance to the real person, the right to one's own image is fully engaged and subsequently violated.[49]

The developer cannot seek refuge in the exception reserved for "Persons of Contemporary History" (*Personen der Zeitgeschichte*), which is generally applied to politicians or massive celebrities.[6] While prominent public figures must legally tolerate a slightly higher degree of media coverage, this exception is strictly, narrowly limited to matters of legitimate public interest, historical documentation, and vital news reporting. It absolutely does not provide a legal license to commercially exploit a prominent local millionaire's likeness as a character in a for-profit entertainment product without their explicit consent and financial compensation.[6] For a private citizen, such as a local beggar, absolutely no overriding public interest exists that could possibly justify the non-consensual, digital commodification of their identity for a video game.[6]

5. Data Protection (DSG) and the Illusion of AI Copyright

Beyond personality rights, the methodological execution of the developer's plan—photographing local Zurich citizens and feeding these images into generative AI models to create game assets—triggers immediate, severe regulatory action under the Swiss Federal Act on Data Protection (DSG).[47]

5.1. Criminal Processing of Biometric Data

Biometric data, facial geometries, and photographs of identifiable living persons are strictly classified as protected personal data under Swiss law. The systematic capturing, processing, and feeding of this data into neural networks or AI models without the explicit, highly informed, and documented prior consent of the subjects—especially for blatant commercial exploitation—violates the fundamental data protection principles of lawfulness, purpose

limitation, and transparency outlined in Article 4 of the DSG.[55]

The Swiss Federal Data Protection and Information Commissioner (EDÖB) has explicitly and publicly warned organizations that the use of generative AI to create likenesses or deepfakes of real persons without airtight consent mechanisms is subject to immediate regulatory intervention and heavy penalties under the revised DSG.[52] The developer is effectively building a commercial product using illegally obtained personal data.

5.2. The Void of Copyright in AI Generation

Finally, the developer must confront a profound commercial vulnerability regarding the proprietary ownership of the visual novel's assets. According to the prevailing legal doctrine in Switzerland and the formal assessments provided by the Swiss Federal Institute of Intellectual Property (IPI), works generated autonomously by AI systems—including hyper-realistic images, narrative texts, and software code—are fundamentally and categorically ineligible for copyright protection under the URG.[57]

Swiss copyright law operates strictly on the *Schöpferprinzip* (the creator principle), which legally mandates that a work must be a human intellectual creation possessing an "individual character" to warrant protection (Art. 2 URG).[60] Therefore, any hyper-realistic backgrounds of Zurich or character portraits generated primarily by an AI model will reside entirely in the public domain from the moment of their creation. Competitors, clone developers, or players could legally extract the AI-generated art files directly from the visual novel's directories and repurpose, sell, or distribute them without committing any copyright infringement against the developer. Legal exclusivity and protection can only be claimed if the developer manually executes substantial, documented, and highly creative human editing on the AI output that elevates the final, static image to a level of individual human authorship, a threshold that is difficult to prove.[62]

6. The Absolute Red Lines for Commercial Viability

To release this commercial visual novel within the Swiss jurisdiction—or to make it available to Swiss consumers—without facing immediate litigation, global distribution injunctions, and total financial ruin, the developer must radically, fundamentally adjust their approach from one of illegal appropriation to one of legal, abstract inspiration. The red lines are inflexible and heavily policed:

1. **Locations and Architecture:** The commercial exploitation of exterior Zurich locations, viewed from public ground, is legally secure under the Freedom of Panorama (Art. 27 URG). However, the unauthorized commercial depiction of interior spaces (e.g., SBB Hauptbahnhof, private cafes) is an absolute red line that violently breaches the owner's *Hausrecht* and requires formal, written, and likely expensive licensing agreements.
2. **Corporate Brands:** The "Magros" strategy is legally toxic and indefensible. Attempting to hijack the visual identity, color scheme, and typography of famous Swiss brands like Migros or the SBB for the sake of "hyper-realism" constitutes actionable unfair competition

(*Rufausbeutung*) under Art. 3 lit. e UWG. Brands must be entirely, visually fictionalized to avoid parasitic, illegal associations.

3. **Real People:** The deployment of recognizable local individuals as game characters, merely by altering their names, is an egregious, intentional violation of personality rights (Art. 28 ZGB), directly contradicting ironclad Federal Supreme Court precedent (BGE 120 II 225). Characters must be violently alienated (*verfremdet*) from their real-world inspirations to the point of complete, undeniable anonymity.

The developer must proceed by constructing a digital world that evokes the atmosphere of Zurich through generic cultural signifiers, original architectural designs, and entirely fictionalized human avatars, rather than lazily and illegally appropriating the fiercely protected property, trademarks, and personal identities of real Swiss citizens and corporations.

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